

Court No. - 3

Case :- WRIT - C No. - 6857 of 2022

Petitioner :- Shree Badri Kedar Papers Private Limited

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vipul Dube, Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State-respondents.

This writ petition has been filed praying for the following reliefs:

"(i) To issue a writ, order or direction in the nature of certiorari calling for the records and quashing the entire recovery proceedings initiated and being contained against the petitioner-company including the Demand notice dated 08.11.2019 (Annexure No.3) to the writ petition)

(ii) To issue a writ, order or direction in the nature of certiorari calling for the records and quashing the Demand/Bill dated 08.01.2020 issued by the respondent no.3 (Annexure no.4 to the writ petition)

(iii) To issue a writ, order or direction in the nature of certiorari calling for the records and quashing the recovery citation dated 03.02.2020 issued by the respondent no.5 (Annexure No.5 to the writ petition)

(iv) To issue a writ, order or direction in the nature of mandamus restraining the respondents from recovering the amount of Rs. 4,34,51,768/- together with collection and other charges from the petitioner-company by adopting the coercive method in pursuance of the impugned recovery proceedings.

(v) To issue a writ, order or direction in the nature of mandamus commanding the respondent no.3 to revise the electricity bills of the petitioner-company in accordance with law and further to issue a fresh and correct bill in respect of the service connection of the petitioner-company.

Learned counsel for the respondent No 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.3 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 5.7.2022

T.S.